MILLBROOK COUNTY SUPERIOR COURT, PART 3
STATE OF NEW YORK - CRIMINAL TERM

THE PEOPLE OF THE STATE OF NEW YORK, v. **DANA WHITLOCK, Defendant.**	**INDICTMENT NO.: 26-CR-0418** CHARGE: 3-Count Indictment *TRIAL TERM: Final Jury Charge & Verdict*

OFFICIAL JURY DELIBERATION BENCH SHEET & VERDICT FORM

PRESUMPTION OF INNOCENCE & BURDEN OF PROOF:
The People must prove every element of a count beyond a reasonable doubt. If they have not proven any one element, you must find the defendant not guilty of that count. You must also be convinced that it was the defendant who committed the acts. The defendant is presumed innocent; guilt must be established on

SUBSTANTIVE OFFENSES & OFFICIAL JURY VERDICT (UNANIMOUS VOTE REQUIRED PER COUNT):

COUNT 1: BURGLARY IN THE THIRD DEGREE (Millbrook Penal Code § 140.20) ☐ **NOT GUILTY** ☐ **GUILTY**

Statutory Rule: A person is guilty of burglary in the third degree when they knowingly enter or remain unlawfully in a building with intent to commit a crime inside it.
(1) The defendant entered or remained in a building: Callan's Hardware, 412 Ferris Street.
(2) The entry or remaining was unlawful: the defendant had no license or privilege to be there at that time.
(3) The defendant knew that the entry or remaining was unlawful.
(4) When entering or remaining, the defendant intended to commit a crime inside (here, theft).

COUNT 2: GRAND LARCENY IN THE FOURTH DEGREE (Millbrook Penal Code § 155.30) ☐ **NOT GUILTY** ☐ **GUILTY**

Statutory Rule: A person is guilty of grand larceny in the fourth degree when they steal property and the value of the property exceeds $1,000.
(1) The defendant wrongfully took, obtained or withheld property.
(2) The property belonged to someone else: Callan's Hardware.
(3) The defendant did so with intent to deprive the owner of the property or to keep it for themselves or another person.
(4) The value of the property taken exceeded $1,000.

COUNT 3: CRIMINAL MISCHIEF IN THE FOURTH DEGREE (Millbrook Penal Code § 145.00) ☐ **NOT GUILTY** ☐ **GUILTY**

Statutory Rule: A person is guilty of criminal mischief in the fourth degree when, having no right to do so nor any reasonable ground to believe they have such a right, they intentionally d
(1) The defendant damaged property: the rear service door of Callan's Hardware.
(2) The property belonged to someone else.
(3) The defendant acted intentionally, not by accident.
(4) The defendant had no right to damage the property and no reasonable ground to believe they had that right.

MASTER ADMITTED EXHIBIT & TESTIMONY INDEX (AVAILABLE IN JURY ROOM & APP):

P-1 (Pros): Police Incident Report (Officer Delgado, March 14-15)
P-2 (Pros): Photo of Rear Service Door showing fresh pry marks
P-3 (Pros): Store Floor Plan of Callan's Hardware (Manager Okafor)
P-4 (Pros): Inventory Loss Statement ($1,180 cash + 11 tool kits = $4,200)
P-5 (Pros): Surveillance Still, Cam 2, 11:42 PM (hooded figure in lot)
P-6 (Pros): Phone Records Excerpt (Cell number ending in 4417)
P-8 (Pros): Surveillance Video, Cam 2, 11:42 PM (frame-by-frame review)
D-1 (Def): Brightline Logistics Timecard Records (week of March 9)
D-2 (Def): Route & Distance Map (Brightline Warehouse to Ferris St)
Tr-1 (Court): Sworn Testimony Excerpt of Officer Rosa Delgado (MPD)
Tr-2 (Court): Sworn Testimony Excerpt of Store Manager Maya Okafor
Display: Room Projector on closed LAN / Juror iPad touch review

DELIBERATION RULES: All 12 jurors must be present. All votes are secret. Questions for the Judge must be in writing via the Bailiff. Verdict must be unanimous.

UNANIMOUS VERDICT CERTIFICATION:
We, the Jury in People v. Dana Whitlock (Indictment No. 26-CR-0418), do hereby certify upon our oaths that we have deliberated and unanimously agreed upon the verdict recorded in

_____ _____
Date of Verdict **Foreperson Signature (Seat 1)**

Received in Open Court: _____ (Date/Time) Court Clerk / Bailiff Attestation: _____